DISTRIBUTION AGREEMENT

THIS DISTRIBUTION AGREEMENT (this "Agreement") is made on this __ day of _____, 2016 by and between:

BENNETT, COLEMAN AND COMPANY LIMITED, a company incorporated under the Companies Act, 1956, having its registered office at The Times of India Building, Dr. D.N. Road, Mumbai 400 001, CIN No. U22120MH1913PLC000391 hereinafter referred to as the 'Publisher/BCCL' (which expression shall unless it be repugnant to the context or meaning thereof mean and include its successors and permitted assigns) of the ONE PART

AND

_____, a company incorporated under Companies Act, 1956 having its registered office at _____, (hereinafter referred to as "Distributor", which expression shall, unless repugnant to the context or meaning thereof, be deemed to include its successors and permitted assigns) of the OTHER PART

Distributor and Publisher shall, hereinafter, individually be referred to as the "Party" and collectively as the "Parties."

WHEREAS:

A. Distributor is engaged *inter-alia* in the business of printing, publishing and distributing various newspapers in _____ and has a reputed newspaper distribution network in the _____.

B. BCCL is engaged *inter-alia* in the business of printing, publishing and distributing various newspapers in various parts of India, including the 'Times of India' English daily news paper.

C. Distributor and BCCL are desirous to cooperate and provide support to each other with a view to increase their respective publication's distribution, to broaden their advertisement clientele, to increase their reach to readers, to obtain better access to news content to leverage synergies to ensure that the interest of consumers / discerning readers is furthered and the like.

D. The Parties agree whereby Distributor shall distribute _____ daily newspaper of BCCL in _____ by utilizing Distributor's existing distribution network.

E. The Parties have in connection with the above, discussed the distribution mechanism including *inter-alia* the locations of distribution, the supply chains, logistics, reach to customers, extent of distribution network and the like. The Parties wish to enter into this Agreement, to record the terms and conditions for the distribution of the _____ daily newspaper of BCCL in the State of _____ by Distributor.

NOW THEREFORE, in consideration of the mutual promises, the mutual covenants, terms and conditions and understandings set forth herein, the Parties with the intent to be legally bound hereby covenant and agree as follows:

1) DEFINITIONS AND INTERPRETATION

a) In this Agreement (including the recitals above and the Schedules hereto), except where the context otherwise requires, the following words in bold and expressions shall have the following meanings:

(i) "**Affiliates**" means **(i)** in the case of person other than an individual, any other person that, either directly or indirectly through one or more intermediate persons, controls, is controlled by or is under common control with such person, and **(ii)** in the case of an individual, any other person that, either directly or indirectly through one or more intermediate persons, controls, is controlled by or is under common control with him / her or his / her Relative. For purposes of this definition, "control" means the power to direct the management or policies of a person, whether through the ownership of over 50 % of the voting power of such person, through the power to appoint over half of the members of the board of directors or similar governing body of such Person, through contractual arrangements or otherwise.

(ii) "**Agreement**" means this Distribution Agreement executed between the Parties.

(iii) "**Law" or "Laws**" includes all applicable statutes, enactments, acts of legislature or Parliament, ordinances, rules, bye-laws, regulations, notifications, policies, directions, directives and orders of any Government, statutory authority, tribunal, board, court or recognised stock exchange of the Republic of India having the force of law including, without limitation, any rules and directives.

(iv) "**TOI**" means the newspapers, "The Times of India" and "The Sunday Times of India", along with all their supplements and inserts.

(v) "**Publication**" shall mean the TOI publication of BCCL.

(vi) "**Term**" shall have the meaning as provided under Clause 6 herein.

(vii) "**Effective Date**" means date of execution of this Agreement.

(viii) "**Territory**" shall means _____.

(ix) "**Cover Price**" means the per copy price, for an individual copy of the Publication, printed on the masthead of the Publication, without any combination offer with any other newspaper.

(x) "**Distribution**" means the circulation and distribution of the Publication in the Territory through network of the Distributor's designated Dealers, subject to the terms of the Agreement.

(xi) "**Distributor's Margin**" means the profit margin available to the Distributor for undertaking Distribution in the Territory.

(xii) "**Dealer**" means any agent appointed by the Distributor to whom the Distributor would further sell the Publication for purpose of Distribution in the Territory.

(xiii) "**Dealer Margin**" means the profit margin amount as prescribed by the Publisher and made available by Distributor to the Dealers for enabling Distribution in the Territory.

(xiv) "**Combo Discount**" means a discount (if any) made available by the Publisher on the Publication when such Publication is sold along with any other newspaper, as a combination offer.

(xv) "**Distribution and Promotion Expenses**" mean specific and pre-approved expenses allowed to the Distributor by the Publisher for the purposes of Distributing the Publication.

(xvi) "**Net Price**" means the per copy price arrived at after subtracting Distributor Margin, Dealer Margin, Combo Discount (if any) from the Cover Price.

(xvii) "**Indent**" means number of copies of each issue of the Publication requisitioned for purchase by the Distributor from the Publisher.

(xviii) **"Unsold"** As the sale is on 'SOR' basis, this would be the number of copies left unsold with the Distributor.

(xix) "**Net Sales**" means Indent less actual number of unsold copies subject to the limits of the Unsold Allowance allowed by the Publisher to the Distributor.

(xx) "**Bill Value**" means value as arrived at by multiplying Indented Copies (number of copies) with Net Price (rupees per copy).

b) In this Agreement (unless the context requires otherwise) :

i) clause headings are for reference only and shall not affect the construction or interpretation of this Agreement;

ii) reference to the singular includes reference to the plural and vice versa, and reference to a gender includes a reference to the other gender;

iii) reference to an individual shall include his legal representative(s), successor(s), legal heir(s), executor(s) and administrator(s);

iv) reference to statutory provisions shall be construed as meaning and including references also to any statutory amendment or re-enactment (whether before or after the date of this Agreement) for the time being in force and to all statutory instruments or orders made pursuant to statutory provisions; and

v) references to any Clause or Schedule shall be deemed to be a reference to such Clause or Schedule of or to this Agreement.

vi) The Recitals and Schedules to this Agreement shall form an integral part of this Agreement.

2) GRANT OF DISTRIBUTION RIGHTS and terms thereof:

2.1 Publisher hereby grants to Distributor, Distribution rights in respect of the Publication in the entire Territory for the Term under this Agreement. Distribution shall be subject to the terms and conditions mentioned in **Schedule A.** To ensure that Publication is received by consumers / discerning readers in a timely and effective manner, it is agreed that DISTRIBUTOR will be the exclusive distributor for Publication in the Territory for the Term under the Agreement. The Publisher shall not itself distribute or grant similar distribution rights to any other third party in the Territory, without consulting the Distributor in that regard and in such a situation, the Parties shall have the option to re-work and modify the commercial terms under this Agreement

3) CONSIDERATION:

In consideration of the services rendered by Distributor, the Distributor will be entitled to Distributors Margin as specified in **Schedule A** hereto.

4) PUBLISHER'S REPRESENTATIONS, WARRANTIES AND COVENANTS:

For the purposes of this Agreement, Publisher hereby provides the following representations, warranties and covenants:

a) Publisher hereby represents and warrants that it has the necessary rights, competence and power to execute, deliver and perform its obligations under the Agreement and all necessary authorizations and other sanctions have been taken to authorize such execution, delivery and performance.

b) The execution, delivery and performance of its obligations under this Agreement do not and will not contravene any third party rights, law, regulation, order, judgment or decree applicable to it or conflict with or result in any breach or default under any agreement, instrument, regulation, license or authorization binding upon it or any of its assets.

c) There are no pending claims, actions, suits or proceedings against it or affecting any of its assets and there has been no event or occurrence which in each case might reasonably be expected to have a material adverse effect on its ability to perform its obligations hereunder.

5) Distributor's representations, warranties and covenants:

For the purposes of this Agreement, Distributor hereby provides the following representations, warranties and covenants:

a) Distributor hereby represents and warrants that it has the necessary rights, competence and power to execute, deliver and perform its obligations under the Agreement and all necessary authorizations and other sanction has been taken to authorize such execution, delivery and performance.

b) The execution, delivery and performance of its obligations under this Agreement do not and will not contravene any third party rights, law, regulation, order, judgment or decree applicable to it or conflict with or result in any breach or default under any agreement, instrument, regulation, license or authorization binding upon it or any of its assets.

c) There are no pending claims, actions, suits or proceedings against it or affecting any of its assets and there has been no event or occurrence which in each case might reasonably be expected to have a material adverse effect on its ability to perform its obligations hereunder.

6) Term and termination:

a) Term:

The Agreement shall commence on the Effective Date and shall be valid thereafter for a period of __ years, unless earlier terminated by either Party as provided below. After this Term, the Agreement may be reviewed and renewed if mutually agreed to in writing by both Parties on mutually acceptable terms and conditions.

b) Termination:

i) Either Party may terminate this Agreement without ascribing any reason thereof by serving a notice of at least __ months to the other Party.

ii) Notwithstanding anything to the contrary contained in this Agreement, either Party may terminate this Agreement forthwith (i) if the other Party has caused Material Breach under this Agreement and the breach remains uncured for a period of thirty (30) days from the date of receipt of the notice of the breach by the Party in default, without prejudice to any other rights and remedies available to the Parties under this Agreement or by law or in equity; or (ii) if the other Party suffers any insolvency proceeding, either voluntary or involuntary, or is adjudicated bankrupt or makes any assignment for the benefit of creditors (such termination will not relieve the Party in default from liability for the performance of its obligations arising prior to such termination and such liability will be in addition to all other rights and remedies the terminating Party may have under this Agreement or at law or in equity).

For the purposes of this clause, "Material Breach" shall mean: (i) any event in which either Party fails in any respect to perform or exercise or comply with any of its covenants, warranties or obligations respectively; or (ii) where either Party causes adverse effect upon the other Party's ability to fulfil the terms of this Agreement or the terms of the Printing Agreement dated _____ between the Parties

c) Effects of Termination:

i) Termination of this Agreement for any reason shall not release either Party hereto from any liability which, at the time of such termination, has already accrued to the other Party or which is attributable to a period prior to such termination, and will not preclude either Party from pursing all rights and remedies it may have.

d) Upon termination of this Agreement for any reason:

i) Distributor will as soon as practicable cease Distribution of Publication lying in its possession;

ii) The Publisher will be entitled to receive all outstanding Bill Value due under the Agreement up to and including the date of termination;

iii) Each Party shall promptly deliver to the other Party or otherwise dispose of in accordance with the other Party's directions, copies of all documents, records and other property supplied by or on behalf of the other Party;

iv) Each Party must immediately cease to use the Trademark or intellectual properties of the other Party and also cease to make any representations that it is associated with the other Party in the Territory;

e) During the notice period, the Parties shall continue to perform their respective obligations under the Agreement to the fullest extent including the payment obligations. Without prejudice to the above, Distributor is to ensure that during the notice period the Distribution shall be continued in the same manner as it was being made available on the notice date and shall not be discontinued from any location.

f) Termination is in addition to any other rights or remedies of a Party. The termination of this Agreement shall not affect any accrued rights, obligations and/or liabilities of the Parties nor the coming into or continuance in force of any provision herein which is expressly or by implication intended to come into or continue in force on or after such termination, all of which shall survive the expiration or termination of this Agreement.

g) The provisions of arbitration, indemnity and confidentiality shall survive the term and termination of this Agreement.

7) Intellectual Property Rights:

The unlimited worldwide copyrights, trademarks and all other intellectual property rights in respect of the contents and all the aspects of the Publication including but not restricted to name, idea, concepts, stories, editorial, themes, colour schemes, typecasts, layout, design, artwork, characters, shall always remain with Publisher. Nothing contained herein shall be deemed to assign, transfer or license any of the aforesaid rights of Publisher to Distributor or its Affiliates.

8) Indemnity:

Distributor hereby agrees to indemnify and shall at all times hold Publisher, its shareholders, directors, officers, employees and Affiliates (each an "Indemnified Person"), harmless and indemnified at all times hereafter, from and against any loss, liabilities, consequences, exposure, outgoings, claims, prejudice, damages, costs, taxes, duties, penalties, interest thereon or expenses of any kind, including reasonable attorney's fees and legal costs (incurred whether in protection or defence) to which Publisher or any other Indemnified Person may be subjected, arising on account of and/or by reason of (i) a breach or disregard of the terms of this Agreement or a breach of the representations, covenants and warranties made by Distributor hereunder, or (ii) contravention by Distributor of any Applicable Laws, regulation, rules, statutes or guidelines of central or any state government or any local or other authority.

Publisher hereby agrees to indemnify and shall at all times hold Distributor, its shareholders, directors, officers, employees and Affiliates (each an "Indemnified Person"), harmless and indemnified at all times hereafter, from and against any loss, liabilities, consequences, exposure, outgoings, claims, prejudice, damages, costs, taxes, duties, penalties, interest thereon or expenses of any kind, including reasonable attorney's fees and legal costs (incurred whether in protection or defence) to which Distributor or any other Indemnified Person may be subjected, arising on account of and/or by reason of: (i) a breach or disregard of the terms of this Agreement or a breach of the representations, covenants and warranties made by Publisher hereunder, or (ii) contravention by Publisher of any Applicable Laws, regulation, rules, statutes or guidelines of central or any state government or any local or other authority.

Neither Party shall be liable to the other by indemnification or otherwise for any special, indirect, consequential or incidental loss or damage.

9) General:

a) This Agreement constitutes the entire agreement between the Parties hereto in relation to its subject matter and supersedes all prior agreements and understandings whether oral or written with respect to such subject matter and no variation of Agreement shall be effective unless reduced to writing and signed by or on behalf of each Party.

b) In the event that any term, condition or provision of Agreement is held to be in violation of any Applicable Law, statute or regulation the same shall be deemed to be severable from the other provisions of Agreement and Agreement shall be construed as if such term, condition or provision had not been contained in this Agreement.

c) Force Majeure:

i) Neither Party shall be liable or responsible for any failure or delay to perform any of their obligations under this Agreement when such failure or delay is due to a force majeure event, which term shall include fire, riot, strike, lockout, war, civil commotion, accident, breakdown of plant or machinery, flood, labour unrest, acts of God, omissions or acts of public authorities, changes in law, regulations or policies of the Government or any other reason beyond the control of Parties.

ii) In the event of the Distributor not being able to undertake distribution at any of its distribution locations in the Territory by reason of a force majeure event, the distribution shall be suspended with respect to the respective distribution location till the subsistence of force majeure event and during such period the Publisher shall make alternate arrangements in respect of such distribution. However, in the event of such force majeure event subsisting for a period exceeding 30 (thirty) days, the Publisher shall be entitled to terminate the arrangement for distribution of TOI in respect of such distribution location.

d) Each Party shall ensure the confidentiality of any information, data and documents from time to time disclosed and/or delivered by the other Party, pursuant to and in accordance with this Agreement.

e) Any notice to be given by either Party to this Agreement shall be in writing and shall be deemed to be duly served if delivered by hand (with proof of acknowledgement of receipt by the addressee), prepaid registered post or through a delivery service/courier at that Party's address stated above or any other address which that Party may have intimated the other Party for this purpose in accordance with the provisions of this clause. Notice issued by electronic-mail (e-mail) to the designated e-mail address of the other Party shall be valid notice, if receipt of such e-mail is confirmed and the e-mail notice is also issued on the same day, by prepaid registered post or through a delivery service/courier.

f) No partnership, joint venture, employment, agency or franchise is intended to be created herein. Nothing in this Agreement will be construed to make the employees/ representatives of one Party, the employees/representatives of the other Party. Neither Party shall have any authority to execute any contract in the name of or otherwise to bind the other Party or any of its subsidiaries or Affiliates.

g) It is specifically understood between the Parties that the relationship between BCCL and DISTRIBUTOR as contemplated under this Agreement is strictly on a principal to principal basis.

h) Any waiver or forbearance in regard to the performance of this Agreement shall operate only if it is in writing and shall apply only to the specified instance, and shall not afterwards affect the existence and continued applicability of the terms of this Agreement.

i) This Agreement shall not be altered, modified or supplemented except by a written document signed by the Parties.

j) Any / all claim(s) or difference(s) between the Parties pursuant hereto or arising herefrom, shall be referred to and settled by an Arbitral Tribunal comprising of 3 (three) arbitrators of which one arbitrator will be appointed by each of the Parties and the third one will be jointly appointed by the aforesaid two arbitrators. The Arbitration Proceedings shall be held under the provisions of the Arbitration and Conciliation Act, 1996. The Arbitration Proceedings shall be in English. The venue of Arbitration shall be Ernakulam. Each Party shall bear its respective cost of Arbitration. An award in the Arbitration shall be final & binding on the Parties

k) With respect to the binding provisions herein, this Agreement shall be governed by the laws of India and shall be subject to the exclusive jurisdiction of the Courts at Ernakulam alone.

l) This Agreement is executed in two counterparts, each of which will be deemed an original, but all of which together will constitute one and the same instrument.

IN WITNESS WHEREOF the Parties have caused this Agreement to be executed by and through their duly authorized representatives as on the date first written hereinabove, in the presence of the following witnesses:

Bennett Coleman & Company Limited	_____
_____ **By**	_____ **By**
_____ **Name**	_____ **Name**
_____ **Title**	_____ **Title**
_____ **Witness**	_____ **Witness**

Schedule A

Distribution Terms and Conditions

Schedule B

Cover Price, Distributors Margin and Combination Offer